

APRIL 27, 2026
Dept. 9
Probate Tentative Rulings

13.	24PR0282	ESTATE OF MASTERS
Petition for Release of Funds & Objection		

Petitioner Guy Sorber (“Petitioner”) brings this Petition for Release of Life Insurance Proceeds. Petitioner states that he and decedent were married at the time of decedent’s death on September 22, 2024, but there was a pending dissolution. Decedent maintained a life insurance policy with Fidelity and Petitioner claims he is the named beneficiary.

As part of the dissolution proceedings, the life insurance proceeds were ordered to be held in the attorney trust account of Layla Cordero, who was decedent’s attorney in the divorce. While Objector Madeline Sorber (“Objector”) acknowledges the insurance proceeds would not normally be part of the estate proceedings since a beneficiary was named, she argues that the proceeds have become subject to probate because the policy did not name contingent beneficiaries.

Objector further alleges that the issue requires an order from probate court because (i) the Petitioner is now the ex-spouse and not a surviving spouse, (ii) the intent of the decedent that the ex-spouse not receive anything from her estate, (iii) the Family Law Court failing to rule on the distribution of the life insurance proceeds, (iv) the community property interest in the proceeds of the life insurance policy, and (v) the uncertainty of the named contingent beneficiaries, the Probate Court needs to rule as to the interest of the estate in the policy proceeds.

In his Petition, Petitioner cites to California Probate Code § 5040 for the proposition that a nonprobate transfer in an insurance policy is effective according to the terms of the instrument. Pursuant to the Notice of Entry of Judgment, the effective date of termination of marital status is September 3, 2024 and decedent’s death of date is after. Section 5040 actually supports Objector’s position and causes the nonprobate transfer to fail. Under § 5040(b), the nonprobate transfer was revocable at the time of death, there is not clear and convincing evidence that decedent intended to preserve the transfer to Petitioner but rather evidence to the contrary¹, and there is no court order maintaining the transfer to Petitioner.

Therefore, Probate Code § 5040 stops the nonprobate transfer to Petitioner. The Court hereby denies the Petition and orders that the life insurance proceeds be treated as an asset of the estate and be distributed accordingly.

¹ Prior to her death, decedent indicated to her counsel that she intended to change the beneficiary designation on her life insurance policy. (Exhibit E to Objection) Further, in her Will, she expressly omits Petitioner. (Exhibit C to Objection)

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TENTATIVE RULING #13:

ABSENT OBJECTION THE PETITION IS DENIED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

THE STATUS OF ADMINISTRATION HEARING SET FOR DECEMBER 14, 2026 AT 8:30 AM IN DEPARTMENT NINE REMAINS ON CALENDAR.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.